

WV HIVE CLIENT SERVICES AGREEMENT

This **CLIENT SERVICES AGREEMENT** (the "Agreement") is entered into on July 6, 2022, by and between the following parties:

WV Hive Network, Inc. (the "WV Hive")

205 S Kanawha St, Beckley, WV 25801

a WV nonprofit corporation; and

Harmony for Hope, Inc. (the "Client")

706 Main Street Mount Hope, WV 25880 [address]

a WV ☐ sole proprietor ☐ partnership ☒ corporation ☐ limited liability company

WHEREAS, WV Hive is a nonprofit corporation which operates as the entrepreneurship program for the New River Gorge Regional Development Authority ("NRGRDA", and with WV Hive and NRGRDA's affiliates and member institutions, and their respective regents, principals, officers, trustees, directors, employees, representatives, and agents, the "NRGRDA Group");

WHEREAS, WV Hive's purpose is to foster economic development within southern West Virginia and to promote small business development by supporting the formation and growth of aspiring and existing businesses that will commercially develop new products and services and create new job opportunities;

WHEREAS, based upon its perceived suitability to benefit from the services and resources of WV Hive, Client has applied for and has been granted acceptance to the WV Hive Network, a group of businesses, each working with WV Hive in accordance with and furtherance of its purpose; and

WHEREAS, Client wishes to obtain from WV Hive certain one-on-one business advising services with a business advisor and other technical assistance support, and WV Hive is willing to provide such services, upon the terms, conditions, commitments and obligations set forth herein.

NOW, THEREFORE, based upon due and adequate consideration, the receipt and sufficiency of which is hereby acknowledged, the parties agree as follows:

1. **BUSINESS PLAN:** Client has engaged WV Hive to assist Client in its creation, evolution, and implementation of its business planning and development (the "Business Plan"). WV Hive will appoint a Business Advisor to provide such assistance. Certain ancillary services related to the primary services provided by WV Hive under this Agreement may incur a charge, the amount of which shall be communicated to Client in advance.
2. **PRIVACY.** Client hereby agrees to WV Hive Privacy Policy (<https://wvhive.com/privacy-policy/>), as adopted and as may be amended by WV Hive, from time to time upon posting on the website, without further notice to Client.
3. **RELATIONSHIP, ADVISORY SERVICES.** Client understands that its relationship with WV Hive does not create or imply a partnership agreement and that this Agreement and the performance hereunder by both or either party is not an implied reason or guarantee for business success, nor does any of the NRGRDA Group make any representation or warranty that Client will achieve success through the services provided under this Agreement or otherwise by WV Hive. Information and advice provided by WV Hive Business Advisors do not constitute and cannot be relied upon as financial, investment, tax or legal advice and is not intended to be a substitute for the professional advice of a financial advisor, tax professional, CPA or attorney. Any action Client takes upon the information and advice provided through the WV Hive advisory services is strictly at its own risk, and neither WV Hive

nor any of the NRGRDA Group will be liable for any losses and damages resulting therefrom. It is Client's obligation to seek financial, investment, tax and legal advice from its own professional advisors.

4. **TRADEMARKS.** WV Hive and NRGRDA, and their respective representatives and affiliates, are hereby given the express authority, in perpetuity, to use Client's name, trademarks and a brief description of Client's business and/or the services rendered by WV Hive under this Agreement, in its marketing, promotional, reporting and funding efforts. With the express written consent of WV Hive, Client may use the name and trademarks of WV Hive, which consent may be revoked at any time, for any reason.
5. **CONFIDENTIAL INFORMATION.** WV Hive shall maintain Client's trade secret information (as that term is defined by the West Virginia Uniform Trade Secrets Act) as confidential, during the term of this Agreement and for a period of three years thereafter. Notwithstanding the foregoing, WV Hive is hereby expressly authorized to: (a) include specific confidential information of Client in its marketing, promotional, reporting and funding efforts, as agreed to by Client in advance; (b) disclose Client business information, including without limitation trade secret information, to any governmental agency, nonprofit or other funding sources of WV Hive or any of the NRGRDA Group, or as otherwise may be required by law or a Court of Law; and (c) aggregate confidential information received from Client with other clients' information, for any purpose and without obligation of confidentiality.
6. **TERMINATION.** This Agreement may be terminated by either party, with or without cause or notice, at any time, whether or not the services are in process or completed. The obligations of privacy and confidentiality as hereinabove provided, as well as the provisions hereinafter set forth, shall survive termination of this Agreement.
7. **EXIT INTERVIEW.** In furtherance of WV Hive's purpose, and to allow WV Hive to provide aggregate reporting on its activities to its affiliates and funders, upon termination of this Agreement Client agrees (a) to perform an exit interview with the Business Advisor, and (b) upon request and subject to the confidentiality obligations and authorized use of information hereinabove set forth, to provide WV Hive with subsequent annual financial, sales, and employment information (for at least three fiscal years after the termination of this Agreement).
8. **NON-DISPARAGEMENT.** During the term of this Agreement and thereafter, Client will take no action which is intended, or would reasonably be expected, to materially harm the business, purpose or reputation of any of the NRGRDA Group.
9. **LIMITATION OF LIABILITY; WAIVER.** If for any reason WV Hive terminates or is unable to provide Client with any services under this Agreement, Client agrees that WV Hive's sole liability for such failure is limited to crediting or returning to Client a fair proportion of the relevant fee, if any, for the services for which Client has paid but were not provided. In no event shall WV Hive be obligated to return any fees in the event Client is in material breach of any of the terms and conditions of this Agreement.

IN NO EVENT SHALL THE STATE OF WEST VIRGINIA OR ANY OF THE NRGRDA GROUP BE LIABLE FOR ANY INDIRECT, SPECIAL, CONSEQUENTIAL, INCIDENTAL, EXEMPLARY, OR PUNITIVE DAMAGES (INCLUDING, WITHOUT LIMITATION, DAMAGES FOR LOSS OF PROFITS OR REVENUE ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT AND THE PERFORMANCE, ACTION OR INACTION HEREUNDER, REGARDLESS OF WHETHER ANY SUCH PERSON OR ENTITY KNOWS OR SHOULD KNOW OF THE POSSIBILITY OF SUCH DAMAGES).

10. This Agreement constitutes the entire Agreement between the parties, superseding any and all prior or contemporaneous oral or written representations, communications, understandings or agreements with regard to the subject matter hereof. Except as expressly contemplated hereby, any and all amendments, modifications, alterations or changes to this Agreement must be in writing and signed by both parties.

IN WITNESS WHEREOF, the undersigned parties agree to comply and abide in good faith with the terms, conditions and requirement of this Agreement.

Carrie A. Kidd
Carrie A. Kidd (Jul 6, 2026 18:14:54 EDT)

Client Signature
Amy L. Showalter

WV Hive Network, Inc.

Jul 6, 2026

Date
Jul 17, 2026

Date

C Kidd WV Hive Client Agreement

Final Audit Report

2026-07-17

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